

**SUBSTITUTE FOR
HOUSE BILL NO. 5645**

A bill to amend 2000 PA 190, entitled
"Privately owned cervidae producers marketing act,"
by amending sections 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 14, and 17
(MCL 287.952, 287.953, 287.954, 287.955, 287.956, 287.957, 287.958,
287.959, 287.960, 287.961, 287.964, and 287.967), as amended by
2006 PA 561.

THE PEOPLE OF THE STATE OF MICHIGAN ENACT:

1 Sec. 2. As used in this act:

2 **(a) "Biosecurity" means measures, actions, or precautions**
3 **taken to prevent the transmission of disease in, among, or between**
4 **free-ranging and privately owned cervidae species.**

5 **(b) ~~(a)~~**"Business plan" means a written document of intent
6 that a person submits to the department that defines the methods,



1 protocols, or procedures that the person intends on implementing to
2 be in compliance with this act.

3 ~~(b) "Biosecurity" means measures, actions, or precautions~~
4 ~~taken to prevent the transmission of disease in, among, or between~~
5 ~~free-ranging and privately owned cervidae species.~~

6 (c) "Cervidae livestock facility" means a privately owned
7 cervidae livestock operation on privately controlled lands capable
8 of holding cervidae species.

9 (d) "Cervidae livestock operation" means an operation that
10 contains 1 or more privately owned cervidae species involving the
11 producing, growing, propagating, using, harvesting, transporting,
12 exporting, importing, or marketing of cervidae species or cervidae
13 products under an appropriate registration.

14 (e) "Cervidae products" means any products, co-products, or
15 by-products of cervidae, including antler, antler velvet, meat, or
16 any part of the animal.

17 (f) "Cervidae species" means members of the cervidae family,
18 including, but not limited to, deer, elk, moose, reindeer, and
19 caribou.

20 (g) "Department" means the ~~Michigan~~ department of ~~natural~~
21 ~~resources.~~ **agriculture and rural development.**

22 (h) "Director" means the director of the ~~Michigan~~ department
23 ~~of natural resources or his or her~~ **the director's** designee.

24 (i) "Farm" or "farm operation" means those terms as defined in
25 the Michigan right to farm act, 1981 PA 93, MCL 286.471 to 286.474.

26 (j) "Flush" or "flushed" means to move or chase from a
27 cervidae livestock facility.

28 (k) "Identify" means any documentable system or process that
29 allows a person to recognize as separate or different an individual



1 animal.

2 (l) "Law enforcement officer" means ~~a person~~ **an individual**
3 appointed by the state or a local governmental unit who is
4 responsible for the enforcement of the criminal laws of this state.

5 (m) "Owner" means the person ~~who~~ **that** owns or is responsible
6 for a cervidae livestock operation.

7 (n) "Person" means an individual, corporation, limited
8 liability corporation, partnership, association, joint venture, or
9 other legal entity.

10 (o) "Release" means to cause or allow an animal to become
11 located outside the perimeter fence of a cervidae livestock
12 facility not under the direct control of the owner.

13 Sec. 3. ~~(1) The department shall administer this act . The~~
14 ~~departments of agriculture and environmental quality shall provide~~
15 ~~consultation.~~

16 ~~(2) The department of agriculture and~~ may conduct activities
17 designed to develop and assist the cervidae industry in the manner
18 provided for by law. **The department may consult with the department**
19 **of natural resources and the department of environment, Great**
20 **Lakes, and energy to administer this act.**

21 Sec. 4. (1) A cervidae livestock operation is an agricultural
22 enterprise and is considered to be part of the farming and
23 agricultural industry of this state. The director ~~of the department~~
24 ~~of agriculture~~ shall ~~assure~~ **ensure** that cervidae livestock
25 operations are afforded all rights, privileges, opportunities, and
26 responsibilities of other agricultural enterprises.

27 (2) Cervidae livestock operations are a form of agriculture.
28 Cervidae livestock facilities and their equipment are considered to
29 be agricultural facilities and equipment. Uses related to the



1 farming of cervidae are considered agricultural uses.

2 (3) Cervidae products and cervidae species lawfully produced,
3 purchased, possessed, or acquired from within this state or
4 imported into this state are the exclusive and private property of
5 the owner.

6 (4) An owner harvesting privately owned cervidae species from
7 a registered cervidae livestock facility is exempt from possession
8 limits and closed seasons involving cervidae imposed in parts 401,
9 411, and 427 of the natural resources and environmental protection
10 act, 1994 PA 451, MCL 324.40101 to 324.40120, 324.41101 to
11 324.41105, and 324.42701 to 324.42714. This act does not give a
12 cervidae livestock operation authority to take free-ranging animals
13 in violation of the natural resources and environmental protection
14 act, 1994 PA 451, MCL 324.101 to 324.90106, unless under a permit
15 issued by the department **of natural resources**.

16 (5) Any movement, importing, or exporting of cervidae species
17 or cervidae products ~~shall~~**must** be in compliance with the animal
18 industry act, 1988 PA 466, MCL 287.701 to ~~287.745~~**287.746**.

19 Sec. 5. (1) A person shall not possess cervidae or engage in a
20 cervidae livestock operation unless ~~he or she~~**the person** obtains
21 from the department a cervidae livestock facility registration or
22 unless otherwise exempt by rule or law. If the activity in which
23 the cervidae livestock facility is engaged is required to be
24 regulated under any other act, registration under this act does not
25 exempt the person or cervidae livestock facility from requirements
26 imposed under any local, state, or federal regulation. Zoos
27 accredited under the American ~~zoological association~~**Zoological**
28 **Association** or other accreditations or standards determined
29 appropriate by and acceptable to the department are exempt from



1 this act.

2 (2) A person registered under this act shall keep and maintain
 3 records of production, purchases, or imports in order to establish
 4 proof of ownership and ~~shall keep~~ any other records required under
 5 standards incorporated by reference under section 6. A person
 6 ~~transporting that transports~~ cervidae species shall produce
 7 documentation that contains the origin of shipment, registration or
 8 permit copies or documentation, documentation demonstrating
 9 shipping destination, and any other proof that may be required
 10 under the animal industry act, 1988 PA 466, MCL 287.701 to ~~287.745,~~
 11 ~~upon 287.746,~~ on demand of the director or a law enforcement
 12 officer.

13 (3) ~~Until July 1, 2008, a cervidae livestock facility~~
 14 ~~registered prior to the effective date of the amendatory act that~~
 15 ~~added this subsection must comply with the facility standards~~
 16 ~~contained in "Operational Standards for Registered Privately Owned~~
 17 ~~Cervid Facilities", published by the Michigan department of~~
 18 ~~agriculture, (May 2000). A April 1, 2028, a cervidae livestock~~
 19 ~~facility in existence on or before the effective date of the 2026~~
 20 ~~amendatory act that added~~ **amended** this subsection shall be in
 21 compliance with **1 of the following:**

22 **(a) The** facility standards, ~~by July 1, 2008,~~ which are
 23 contained in "Operational Standards for Registered Privately Owned
 24 Cervidae Facilities" published by the Michigan department of
 25 natural resources, (revised December 2005), adopted by the Michigan
 26 commission of agriculture on January 9, 2006, and adopted by the
 27 natural resources commission on January 12, 2006, and are
 28 incorporated by reference.

29 **(b) The updated version of the facility standards adopted by**



1 the department under section 6(1).

2 (4) Beginning April 1, 2028, a cervidae livestock facility
3 shall be in compliance with the updated version of the facility
4 standards adopted by the department under section 6(1).

5 Sec. 6. (1) The initial application to construct a cervidae
6 livestock facility ~~shall~~**must** be accompanied by the application fee
7 described in section 8. The department shall approve, deny, or
8 propose a modification to the completed application within 60 days.

9 ~~The~~**Until 1 year after the effective date of the 2026 amendatory**
10 **act that amended this section, the** department shall utilize the
11 standards contained in "Operational Standards for Registered
12 Privately Owned Cervidae Facilities", published by the Michigan
13 department of natural resources, (revised December 2005), adopted
14 by the Michigan commission of agriculture on January 9, 2006, and
15 adopted by the natural resources commission on January 12, 2006,
16 and incorporated by reference, to evaluate the issuance,
17 construction, maintenance, administration, and renewal of a
18 registration issued under this act. ~~The~~**Not later than 1 year after**
19 **the effective date of the 2026 amendatory act that amended this**
20 **section, the** department, ~~after consultation with the department of~~
21 ~~agriculture and with concurrence of~~**in consultation with the**
22 **department of natural resources and** the commissions of natural
23 resources and agriculture, ~~may, by amendment of this act, amend or~~
24 **shall** update the standards adopted in this subsection. Before
25 issuing any registration under this act, the director shall verify,
26 through written confirmation, both of the following:

27 (a) The department, **in consultation with the department of**
28 **natural resources,** has approved the method used to flush any free-
29 ranging cervidae species from the facility, if applicable, and all



1 free-ranging cervidae species have actually been flushed.

2 (b) The department, **in consultation with the department of**
3 **natural resources**, has determined that the size and location of the
4 facility will not place unreasonable stress on wildlife habitat or
5 migration corridors.

6 (2) As part of the initial application or the application to
7 modify a cervidae livestock facility, the applicant for
8 registration shall submit a business plan ~~complying~~ **that complies**
9 with the standards established under this section ~~that~~ **and** includes
10 all of the following:

11 (a) The complete address of the proposed cervidae livestock
12 facility and the size of, the location of, and a legal description
13 of the lands on which the cervidae livestock operation will be
14 conducted.

15 (b) The number of each cervidae species included in the
16 proposed facility.

17 (c) Biosecurity measures to be utilized, including, but not
18 limited to, methods of fencing and appropriate animal
19 identification.

20 (d) The proposed method of flushing wild cervidae species from
21 the enclosure, if applicable.

22 (e) A record-keeping system in compliance with this act and
23 the operational standards incorporated by reference in subsection
24 (1).

25 (f) The method of verification that all free-ranging cervidae
26 species have been removed.

27 (g) The current zoning of the property proposed as a cervidae
28 livestock facility and whether the local unit or units of
29 government within which the cervidae livestock facility will be



1 located has an ordinance regarding fences.

2 (h) A disease herd plan in compliance with the operational
3 standards incorporated by reference in subsection (1) to be
4 approved by the state veterinarian under the animal industry act,
5 1988 PA 466, MCL 287.701 to ~~287.745~~.**287.746**.

6 (i) Any other information considered necessary by the
7 department.

8 ~~(3) Upon receipt of an application, the director shall forward~~
9 ~~1 copy each to the departments of agriculture and environmental~~
10 ~~quality. Upon~~ **On** receipt of an application, the department shall
11 send a written notice to the local unit or units of government
12 within which the proposed cervidae livestock facility will be
13 located unless the department determines, from information provided
14 in the application, that the local unit of government has a zoning
15 ordinance under which the land is zoned agricultural. The local
16 unit or units of government may respond, ~~within~~ **not later than** 30
17 days ~~of~~ **after** receipt of the written notice, indicating whether the
18 applicant's cervidae livestock facility would be in violation of
19 any ordinance.

20 (4) The department shall not issue an initial cervidae
21 livestock facility registration or modification unless the
22 application demonstrates all of the following:

23 (a) The cervidae livestock facility has been inspected by the
24 director and ~~he or she has determined~~ **the director determined** that
25 the cervidae livestock facility meets the standards and
26 requirements prescribed by and adopted under this act, complies
27 with the business plan submitted to the department, and determines
28 that there are barriers in place to prevent the escape of cervidae
29 species and prevent the entry of wild cervidae species. A renewal



1 or initial applicant must provide a perimeter fence in compliance
 2 with the operational standards incorporated by reference under
 3 subsection (1).

4 (b) The method for individual animal identification complies
 5 with the standards incorporated by reference under this section.

6 (c) The applicant has all necessary permits that are required
 7 under ~~part 31 regarding water resources protection, part 301~~
 8 ~~regarding inland lakes and streams, and part 303 regarding wetland~~
 9 ~~protection~~ **parts 31, 301, and 303** of the natural resources and
 10 environmental protection act, 1994 PA 451, MCL 324.3101 to
 11 ~~324.3133, 324.3134~~, 324.30101 to 324.30113, and 324.30301 to
 12 ~~324.30323, 324.30328~~, and any other permits or authorizations that
 13 may be required by law.

14 (5) ~~Beginning the effective date of the amendatory act that~~
 15 ~~added this subsection, the~~ **The** department shall issue an initial
 16 registration or modification registration allowing an expansion of
 17 an existing **cervidae livestock** facility not later than 120 days
 18 after the applicant files a completed application. Renewal
 19 applications ~~shall~~ **must** be issued not later than 60 days after the
 20 applicant files a completed application. Receipt of the application
 21 is considered the date the application is received by the
 22 department. If the application is considered incomplete by the
 23 department, the department shall notify the applicant in writing,
 24 or make the information electronically available, ~~within~~ **not later**
 25 30 days after receipt of the incomplete application, describing the
 26 deficiency and requesting the additional information. The
 27 determination of the completeness of an application does not
 28 operate as an approval of the application for the registration and
 29 does not confer eligibility ~~upon~~ **on** an applicant determined



otherwise ineligible for issuance of a registration. The 120-day period is tolled under any of the following circumstances:

(a) Notice sent by the department of a deficiency in the application until the date all of the requested information is received by the department.

(b) The time period during which required actions are completed that include, but are not limited to, ~~completion~~ **any of the following:**

(i) **Completion** of construction or renovation of the facility. ~~mandated~~

(ii) **Mandated** reinspections if by the department. ~~or other~~

(iii) **Other** inspections if required by any state, local, or federal agency. ~~approval~~

(iv) **Approval** by the legislative body of a local unit of government. ~~or other~~

(v) **Other** actions mandated by this act or as otherwise mandated by law or local ordinance.

(6) If the department fails to issue or deny a registration within the time required by this ~~subsection,~~ **section**, the department shall return the registration fee and ~~shall~~ reduce the registration fee for the applicant's next renewal application, if any, by 15%. The failure to issue a registration within the time required under this section does not allow the department to otherwise delay the processing of the application, and that application, ~~upon~~ **on** completion, ~~shall~~ **must** be placed in sequence with other completed applications received at that same time. The department shall not discriminate against an applicant in the processing of the application based ~~upon~~ **on** the fact that the registration fee was refunded or discounted under this subsection.



1 (7) ~~Upon~~ **On** receipt of a denial under this section and without
 2 filing a second application, the applicant may request in writing
 3 and, if requested, the department shall provide an informal review
 4 of the application. ~~The review shall include the applicant, the~~
 5 ~~department, and the departments of agriculture and environmental~~
 6 ~~quality, if applicable.~~ After the informal review, if the director
 7 determines that the proposed cervidae livestock facility ~~or~~
 8 ~~cervidae livestock operation~~ complies with the requirements of this
 9 act, the director shall issue a registration ~~within~~ **not later than**
 10 30 days after the applicant notifies the department of completion
 11 of the **cervidae livestock** facility. After the informal review, if
 12 the director determines that the proposed cervidae livestock
 13 facility ~~or cervidae livestock operation~~ does not comply with the
 14 requirements of this act, the director shall affirm the denial of
 15 the application in writing and specify the deficiencies needed to
 16 be addressed or corrected in order for a registration to be issued.
 17 The applicant may waive the informal review of the application.

18 (8) As used in this subsection, "completed application" means
 19 an application complete on its face and submitted with any
 20 applicable registration fees as well as any other information,
 21 records, approval, security, or similar item required by law or
 22 rule from a local unit of government, a federal agency, or a
 23 private entity but not from another department or agency of ~~the~~
 24 **this** state. ~~of Michigan.~~

25 Sec. 7. (1) At the time the construction of the cervidae
 26 livestock facility is completed, the applicant shall notify the
 27 department in writing. ~~That~~ **The** written notice ~~shall certify~~
 28 **certifies** that, to the best of the applicant's knowledge, the
 29 cervidae livestock facility ~~has been~~ **is** constructed in compliance



1 with the requirements of **the United States Department of**
 2 **Agriculture's federal captive cervid program or the requirements of**
 3 this act and ~~in compliance with the standards for cervidae~~
 4 livestock facilities. ~~Within~~ **Not later than** 30 days after
 5 notification of the completion of the cervidae livestock facility,
 6 **the proposed cervidae livestock facility must be inspected by the**
 7 **United States Department of Agriculture to determine compliance**
 8 **with the federal captive cervid program or by the director shall**
 9 ~~inspect the cervidae livestock facility. to determine compliance~~
 10 **with the requirements of this act. Compliance with the United**
 11 **States Department of Agriculture federal captive cervid program**
 12 **constitutes compliance with the requirements of this act.** If the
 13 **United States Department of Agriculture or the** director determines
 14 that the proposed cervidae livestock facility conforms to standards
 15 prescribed by and adopted under **the federal captive cervid program**
 16 **or** this act, the director shall issue a registration ~~within not~~
 17 **later than** 30 days after completion of an inspection. ~~finding that~~
 18 ~~the cervidae livestock facility conforms to this act.~~ The time
 19 periods described in this subsection may be extended by the
 20 department only if the department is unable to verify the removal
 21 of wild cervidae species, for an act of God, or in accordance with
 22 section 6(5) (a) or (b).

23 (2) If the **United States Department of Agriculture or the**
 24 director determines that a proposed cervidae livestock facility
 25 does not comply with the requirements of **the federal captive cervid**
 26 **program or** this act, the director shall deny the application for
 27 registration. The department shall notify ~~in writing~~ an applicant
 28 **in writing** of the reasons for a registration denial ~~within not~~
 29 **later than** 60 days after receipt of the completed application. The



1 notice ~~shall~~**must** specify in writing the deficiencies to be
 2 corrected in order for a registration to be issued.

3 (3) Without filing a second application under this section, an
 4 applicant may request a second inspection after the specified
 5 deficiencies ~~have been~~**are** corrected. The department is not
 6 required to make more than 2 preregistration inspections of the
 7 same proposed cervidae livestock facility per application.

8 (4) ~~Upon~~**On** receipt of a second denial under this section and
 9 without filing a second application, the applicant may request in
 10 writing and, if requested, the department shall provide an informal
 11 review of the application. ~~The review shall include the applicant,~~
 12 ~~the department, and the departments of agriculture and~~
 13 ~~environmental quality, if applicable.~~ After the informal review, if
 14 the director determines that the proposed cervidae livestock
 15 facility complies with the requirements of this act, the director
 16 shall issue a registration ~~within~~**not later than** 30 days after the
 17 informal review. After the informal review, if the director
 18 determines that the proposed facility does not comply with the
 19 requirements of this act, the director shall affirm the denial of
 20 the application in writing and specify the deficiencies needed to
 21 be addressed or corrected in order for a registration to be issued.
 22 The applicant may waive the informal review of the application.

23 (5) The applicant may request a hearing ~~pursuant to~~**in**
 24 **accordance with** the administrative procedures act of 1969, 1969 PA
 25 306, MCL 24.201 to 24.328, on a denial of a registration or ~~upon~~**on**
 26 any limitations placed ~~upon~~**on** the issuance of a registration.

27 (6) The department shall not return a registration fee or a
 28 portion of a registration fee to an applicant if a registration is
 29 denied.



1 Sec. 8. (1) A registration issued by the department is ~~issued~~
 2 ~~for 3 years~~ **valid for 1 year** and ~~shall~~ **must** contain the following
 3 information:

4 (a) The registration number, class, date of issuance, and
 5 expiration date.

6 (b) The cervidae species involved in the cervidae livestock
 7 facility.

8 (c) The complete name, business name, business address, and
 9 telephone number of the cervidae livestock facility registration
 10 holder.

11 (d) The complete address of the cervidae livestock facility
 12 location, including the county, township, and section, and ~~shall~~
 13 **must** also include the size of the facility.

14 (e) The complete name, address, and telephone number of the
 15 ~~department of natural resources~~ **department's** contact person
 16 regarding cervidae livestock operations.

17 (f) Any other information provided in the application.

18 (2) The department shall issue to a person ~~meeting that~~ **meets**
 19 the requirements of this act a registration to operate a cervidae
 20 livestock facility. The department may provide limited registration
 21 classes. Beginning ~~the effective date of the amendatory act that~~
 22 ~~added this sentence,~~ **December 29, 2006**, the department shall not
 23 issue an initial registration for a class I (hobby) but may renew
 24 the registration of any class I (hobby) that ~~is~~ **was** in existence on
 25 ~~the effective date of that amendatory act.~~ **December 29, 2006.**

26 (3) The department shall charge a nonrefundable application
 27 fee of \$250.00 for an initial application and the following initial
 28 inspection fees:

29 (a) For facilities containing 40 acres or less \$ 250.00.



1 (b) For facilities greater than 40 acres \$ 500.00.

2 (4) The fee for a second inspection of a cervidae livestock
3 facility conducted under section 7(3) is \$100.00.

4 (5) The department shall charge the following fees for initial
5 and renewal applications for cervidae facilities:

6 (a) Class I (hobby) renewal \$ ~~450.00.~~**\$1**
7 **50.00.**

8 (b) Class II (exhibition) \$ ~~450.00.~~**\$1**
9 **50.00.**

10 (c) Class III (ranch) \$ ~~750.00.~~**\$2**
11 **50.00.**

12 (d) Full registration \$ ~~750.00.~~**\$2**
13 **50.00.**

14 (6) Application for renewal of a registration ~~shall~~**must** be
15 submitted not later than 60 days before expiration of the current
16 registration. Each renewal registration ~~shall be issued for a~~
17 ~~period of 3 years from~~**is valid for 1 year after** the expiration
18 date of the previous registration. **The fees for initial and renewal**
19 **applications described in subsections (3) and (5) are due to the**
20 **department not later than May 1 each year.**

21 (7) Failure of the department to process a renewal application
22 that was submitted in a timely and complete manner operates to
23 extend the current registration until such time as the department
24 completes the processing.

25 (8) Unless otherwise indicated in writing by the department at
26 the time the department sends a registered facility its renewal
27 application, there is a presumption that the department shall renew
28 the registration ~~upon~~**on** timely submission of the completed renewal
29 application and registration fee.



1 (9) The fees collected under this section must be deposited
 2 into the agriculture licensing and inspection fees fund created in
 3 section 9 of the insect pest and plant disease act, 1931 PA 189,
 4 MCL 286.209.

5 Sec. 9. (1) A registered cervidae livestock facility shall
 6 apply for a modification of the cervidae livestock facility
 7 registration if any changes to the information on the registration
 8 have occurred or will occur. Except for registrations approved
 9 under subsection (2)(a), expiration dates ~~shall~~**do** not change for
 10 approved modifications.

11 (2) A completed modification application ~~shall~~**must** be
 12 submitted and approved by the department before any of the
 13 following changes occur:

14 (a) A change in registration class.

15 (b) A modification to the size of a cervidae livestock
 16 facility.

17 (3) A modification application submitted under subsection
 18 (2)(a) ~~shall~~**must** include the appropriate fee for the new class. If
 19 approved by the department, the registration expires ~~3 years from~~**1**
 20 **year after** the new date of issuance.

21 (4) A modification application submitted under subsection
 22 (2)(b) ~~shall~~**must** include the submission of a modification
 23 application fee of \$100.00.

24 (5) A modification application ~~shall~~**must** be submitted ~~within~~
 25 **not later than** 30 days after any of the following changes ~~have~~
 26 ~~occurred~~**occur**:

27 (a) A change to the complete name, business name, business
 28 address, or telephone number of the current cervidae livestock
 29 facility registration holder.



1 (b) A change to the complete address of the cervidae livestock
2 facility location.

3 (c) A sale or transfer of ownership of a cervidae livestock
4 facility. The modification application ~~shall~~**must** include a written
5 statement signed by the new and previous owner ~~verifying that~~
6 **verifies** the sale or transfer of ownership.

7 (d) The introduction of new species into a cervidae livestock
8 facility.

9 (6) A registrant may request decommissioning of a cervidae
10 livestock facility. The decommissioning of a cervidae livestock
11 facility ~~shall~~**must** be in compliance with the operational standards
12 incorporated by reference under section 6(1) and ~~upon~~**on** approval
13 by the department, unless there is a risk to the environment and to
14 the health of other free-ranging animals in the area in the removal
15 of fencing and other barriers. **Not later than 1 year after the**
16 **effective date of the 2026 amendatory act that added this sentence,**
17 **the department of natural resources shall complete an audit of all**
18 **expired and actively decommissioning cervidae livestock facilities**
19 **and share the results of the audit with the department. The**
20 **department of natural resources is responsible for the**
21 **decommissioning of cervidae livestock facilities that begins on or**
22 **before the effective date of the 2026 amendatory act that added**
23 **this sentence.**

24 Sec. 10. The director shall enter into a memorandum of
25 understanding with the department of ~~agriculture for approving~~
26 ~~disease herd plans and determining compliance by persons engaged in~~
27 ~~cervidae livestock operations, applicants, and registered~~ **natural**
28 **resources to accomplish the following purposes:**

29 (a) **Decommissioning** cervidae livestock facilities. ~~with this~~



~~act and investigation of violations of this act.~~

(b) Approving cervidae livestock facilities, including location and size.

(c) Reviewing the impacts of cervidae livestock facilities on habitats and wildlife migration patterns.

(d) Approving methods used to flush any free-ranging cervidae species.

(e) Approving methods used to confirm successful flushing of any free-ranging cervidae species.

(f) Any other purpose considered necessary by the department.

Sec. 11. After flushing cervidae species in an approved manner, any cervidae species remaining in the cervidae livestock facility must be killed by or under the authority of the registrant ~~pursuant to~~ **in accordance with** an appropriate permit issued by the department **of natural resources**. A person shall reimburse the ~~state of Michigan~~ **department** \$250.00 per individual cervid that must be killed under the appropriately issued permit to meet the requirements of this section.

Sec. 14. (1) After an opportunity for an administrative hearing, the department may deny, suspend, revoke, or limit a registration if the applicant or registrant fails to comply with this act, standards adopted or established under this act, or orders issued by the director as a result of an administrative action or informal departmental review conducted under this act.

(2) In addition to the provisions contained in subsection (1), the department may deny the issuance of a registration, modification, or an application for decommission or may suspend or revoke a registration if the department, in consultation with the department of ~~agriculture or the department of environmental~~



1 ~~quality, or both,~~ **natural resources and the department of**
 2 **environment, Great Lakes, and energy,** determines that based ~~upon~~ **on**
 3 substantial scientific evidence, the issuance of a registration or
 4 approval of decommission will cause, or is likely to cause, an
 5 unreasonable or adverse effect ~~upon~~ **on** the environment or ~~upon~~
 6 wildlife ~~which~~ **that** cannot be remedied by, or is not addressed by,
 7 the existing standards under this act.

8 (3) Except in the case of an informal departmental review, the
 9 department shall conduct an administrative proceeding under this
 10 act ~~pursuant to~~ **in accordance with** the administrative procedures
 11 act of 1969, 1969 PA 306, MCL 24.201 to 24.328.

12 Sec. 17. (1) A person shall not release or allow the release
 13 of any cervidae species from a cervidae livestock facility. This
 14 section does not prohibit the sale, breeding, marketing,
 15 exhibition, or other approved uses of cervidae species in the
 16 manner provided for by law. An animal that escapes from a facility
 17 is considered to be public property if the operator of a cervidae
 18 livestock facility does not notify the department in compliance
 19 with the standards established under this act.

20 (2) An owner shall not abandon a registered cervidae livestock
 21 facility without first notifying the department ~~and the Michigan~~
 22 ~~department of agriculture~~ in compliance with the standards
 23 established under this act.

24 (3) A person shall not intentionally or knowingly do either or
 25 both of the following:

26 (a) Cause the ingress of free-ranging cervidae species into a
 27 registered cervidae livestock facility.

28 (b) Release or allow the release of any cervidae species from
 29 a **registered** cervidae livestock facility.



1 (4) A person ~~violating~~**that violates** subsection (1) is guilty
2 of a misdemeanor punishable **as follows:**

3 **(a) For a first offense,** by a fine of not more than \$300.00 or
4 imprisonment ~~of~~**for** not more than 90 days, or both. ~~, for a first~~
5 ~~offense and is guilty of a misdemeanor punishable~~

6 **(b) For a second or subsequent offense,** by a fine of not more
7 than \$1,000.00, or imprisonment for not more than 1 year, or both.
8 ~~, for a second or subsequent offense.~~

9 (5) A person **that** intentionally or knowingly ~~violating~~
10 **violates** subsection **(2) or (3)** ~~or violating subsection (2)~~ is
11 guilty of a felony.

12 Enacting section 1. This amendatory act takes effect 1 year
13 after the date it is enacted into law.